

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Harry Feigen	Team: Squad #13	CCRB Case #: 201702572	☐ Force	☐ Discourt.	☐ U.S.
			☐ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Tuesday, 03/28/2017 11:30 PM	Location of Incident: Harley's Restaurant located at 355 East 116th Street		18 Mo. SOL 9/28/2018		Precinct: 25
Date/Time CV Reported Mon, 04/03/2017 11:12 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 04/03/2017 11:12 AM		

Complainant/Victim	Type	Home Address
[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]

Witness(es)	Home Address
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]

Subject Officer(s)	Shield	TaxID	Command
1. POM Mirjan Lolja	05658	936967	025 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Nicholas Brigante	21684	959512	025 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Mirjan Lolja	Off. Language: Police Officer Mirjan Lolja made remarks to § 87(2)(b) based upon gender.	A . Unsubstantiated

Case Summary

On March 29, 2017, § 87(2)(b) a non-witnessing complainant, filed this complaint on behalf of § 87(2)(b) with IAB by phone, generating IAB log number § 87(2)(b). The case was received at the CCRB on April 3, 2017.

On March 28, 2017, at approximately 11:30 a.m., § 87(2)(b) was involved in a dispute between herself and several employees and other patrons of Harley's Smokeshack, a restaurant located at 355 East 116th Street in Manhattan. As § 87(2)(b) and § 87(2)(b) § 87(2)(b) were walking towards the exit of the restaurant, § 87(2)(b) fell at the top of a staircase, and then lay in that position, unable to get up due to pain in her left hip. § 87(2)(b) § 87(2)(b) had called the police earlier to remove § 87(2)(b) and PO Mirjan Lolja and PO Nicholas Brigante, both of the 25th Precinct, arrived at the restaurant shortly after § 87(2)(b) fell at the top of the staircase.

§ 87(2)(b) began to tell the officers about all of her health conditions, and PO Lolja called EMS to respond to the location. Several minutes later, EMT § 87(2)(b) and EMT § 87(2)(b) both of the FDNY, arrived at the restaurant. § 87(2)(b) began to list her health conditions to the EMTs, and PO Lolja interrupted her, saying that § 87(2)(b) was lying about being injured, and told her, "You are a bitch" (**Allegation A**). PO Lolja then lifted § 87(2)(b) and pulled her down the staircase with the assistance of the EMTs, and § 87(2)(b) was then brought to § 87(2)(b). § 87(2)(b) did not receive any medical treatment there, as she refused to sign a waiver form. § 87(2)(b) then drove § 87(2)(b) to § 87(2)(b) § 87(2)(b).

§ 87(2)(b) had pain in her back and neck for several days after this incident, which she believed may have been caused by the way PO Lolja lifted her on the staircase at Harley's Smokeshack. She went to § 87(2)(b) in regards to this pain, § 87(2)(b).

Video Footage

Video footage was obtained from the interior of Harley's Smokeshack. The video shows § 87(2)(b) sitting on the floor at the top of a staircase, with EMT § 87(2)(b) standing behind her, § 87(2)(b) standing behind § 87(2)(b) PO Brigante standing off the side, and EMT § 87(2)(b) on the staircase below § 87(2)(b) PO Lolja then appears in the frame next to § 87(2)(b) and pulls § 87(2)(b) down one stair. § 87(2)(b) and § 87(2)(b) are also holding § 87(2)(b) as PO Lolja does this. PO Lolja and the EMTs then carry § 87(2)(b) down the staircase. The video does not have any audio component, § 87(2)(b). The video clip is linked below, and the full video is located in IA #23 (03 Board Review).



2017-07-05_12-11-05.mp4

Mediation, Civil, and Criminal Histories

- § 87(2)(b) rejected mediation.
- A notice of claim was submitted to the NYC Comptroller's Office on July 5, 2017. It will be added to the case file upon its receipt (01 Board Review).

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is § 87(2)(b)'s first CCRB complaint.
- PO Lolja has been a member of service for 12 years. There are no substantiated allegations on his record. There are four physical force allegations against him across three cases. One has been closed as "exonerated," two as "unsubstantiated," and one as "unfounded."

§ 87(2)(g)

Findings and Recommendations

Allegations Not Pleaded

§ 87(2)(g)

§ 87(2)(g)

Allegation A: Offensive Language – PO Mirjan Lolja made remarks to § 87(2)(b) based upon gender.

§ 87(2)(b) alleged that while she was telling the EMTs at Harley’s Smokeshack about her various medical conditions, PO Lolja interrupted her and stated that § 87(2)(b) was lying about her injuries. He then told her, “You are a bitch” (05 Board Review). In her initial phone statement, § 87(2)(b) stated that PO Lolja told her, “Shut your mouth up you bitch.”

In a phone statement, § 87(2)(b) stated that while § 87(2)(b) was telling the EMTs that she is disabled, PO Lolja told § 87(2)(b) that there was nothing wrong with her, and stated, “Bitch you need to get off the stairs” (06 Board Review). § 87(2)(b) refused to provide an in-person statement to the CCRB.

§ 87(2)(b) § 87(2)(b), provided a phone statement to the CCRB, in which she stated that she did not hear PO Lolja ever refer to § 87(2)(b) as a “bitch” (07 Board Review). Based upon video footage from the restaurant, however, the investigation determined that § 87(2)(b) was on the sidewalk outside of the restaurant at the time that PO Lolja allegedly made the offensive statement to § 87(2)(b) § 87(2)(g)

PO Lolja did not recall calling § 87(2)(b) a “bitch” during this incident. He believed that § 87(2)(b) was lying about being in pain during the incident, because she did not appear distressed while she was sitting at the top of the staircase. He stated that he may have told § 87(2)(b) during the incident that she was faking her injuries (08 Board Review). PO Brigante did not recall PO Lolja calling § 87(2)(b) a “bitch” during this incident, nor did he recall PO Lolja’s demeanor towards § 87(2)(b) (09 Board Review).

Neither § 87(2)(b) nor § 87(2)(b) recalled PO Lolja referring to § 87(2)(b) as a “bitch.” Neither EMT had a substantive memory of the incident, however. Neither EMT could recall any interaction or conversation between § 87(2)(b) and PO Lolja (10 Board Review and 11 Board Review).

§ 87(2)(g)

§ 87(2)(g)

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]. It is therefore recommended
that **Allegation A** be closed as **unsubstantiated**.

Squad: 13

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date